TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JANUARY 29, 2024
MINUTES

STAFF REPORT

Present: Steven Wood, Chair, Giles Branch, Megan Stevens, Aaron Butner, Molly Hall, Elliott Barrow (entered at 6:02 pm).
Absent: Julian Hopkins (excused).
Staff: Chris Swalhah, James Ward, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

▶ *Mr. Butner moved for approval of the agenda. Ms. Hall seconded the motion. All in favor.*

Mr. Barrow entered at this time (6:02 pm).

B. Approval of Minutes

▶ *Mr. Butner moved for approval of the minutes. Ms. Hall seconded the motion. All in favor.*

C. Public Comment
D. General Correspondence

There being no comments or correspondence, Mr. Wood continued with the agenda.

E. Explanation of Procedures
F. Administration of Oath

▶ Mr. Wood administered the oath to those speaking.

G. Business

1. Case V-01-24, 952 South Shem Drive, TMS# 535-15-00-034. Request for relief from the strict application of §156.303(Table) to allow the construction of a carport within the side and front

setbacks. The ordinance requires a 10-foot side setback, and a 25-foot front setback for this property.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Jane Appleby and Ms. Kristen Forno reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment and moved to Board questions.

- *Ms. Stevens moved for denial based on the findings that the hardship has not been met and the property could be utilized without detriment. Mr. Branch seconded the motion. Motion passed on a 5 to 1 vote with Mr. Butner, Mr. Branch, Ms. Stevens, Ms. Hall and Mr. Wood in favor; Mr. Barrow opposed.*

2. Case V-02-24, 1266 West Vagabond Lane, TMS# 559-02-00-091. Request for relief from the strict application of §156.303(Table) to allow a 10-foot encroachment into the required 30-foot rear yard setback.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. George Bodie reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- Mr. Wood swore in Ms. Hannah Bodie. Mr. and Ms. Bodie answered questions from the Board regarding the nature of the request.

- *Mr. Barrow moved for denial based on the findings that there are no extraordinary or exceptional conditions, the conditions are not unique to the property, and denial would not prohibit utilization of the property. Mr. Branch seconded the motion. All in favor.*

3. Case V-03-24, 511 Bank Street, TMS# 532-05-00-131. Request for relief from the strict application of §156.225(C) to allow the removal of a 32'' historic Magnolia tree.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. George Zourzoukis, contractor, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on the findings that the request did not meet the criteria. Motion failed due to the lack of a second.*

- *Mr. Branch moved for approval based on the findings that the arborist report indicates that the tree is not in good condition and therefore, is extraordinary condition; conditions do not apply to other property as this is a damaged tree; denial would prohibit utilization of the property; it is a life safety issue; and would not be a detriment to neighborhood as the owner is trying to maintain the remaining trees on the property. Mr. Butner seconded the motion. Motion passed on a 5 to 1 vote with Mr. Butner, Mr. Branch, Ms. Stevens, Ms. Hall and Mr. Wood in favor; Mr. Barrow opposed.*

4. Case V-04-24, 4891 Sound View Drive, TMS# 600-01-00-565. Request for relief from the strict application of §156.201(I)(2) to allow an encroachment within the critical line buffer for the construction of an inground pool. The ordinance requires a 35-foot buffer from the DHEC-OCRM Critical Line on this property.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Zac Mear, representative for the owners, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment and moved to Board questions.

- *Mr. Branch moved for denial as the request does not meet the state required criteria for a variance. Mr. Barrow seconded the motion. All in favor.*

5. Case V-05-24, 123 Mary Street, TMS# 517-15-00-071. Request for relief from the strict application of S156.313(E)(5)(b)(1) to allow an accessory structure to be built in the front yard of the property. The ordinance requires accessory structures be placed in the rear yard of properties within the Old Village Historic District.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Jim Sloggatt, contractor, and Ms. Janice Hermann, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Butner moved for denial based on the findings that it does not prohibit the utilization of the property as it has been in use since 1860. Mr. Branch seconded the motion. Motion passed on a 5 to 1 vote with Mr. Butner, Mr. Barrow, Mr. Branch, Ms. Hall, and Mr. Wood in favor; Ms. Stevens opposed.*

6. Case V-06-24, 2322 Chisel Plow, TMS# 578-00-00-833. Request for relief from §156.111(A) to allow a 2-foot encroachment in the accessory structure rear setback to construct an inground pool. The ordinance requires a 6-foot accessory structure setback from the rear property line.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Crystal Cline, owner, and Ms. Emily Karafa, contractor, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment and moved to Board questions.

- *Ms. Hall moved for denial as the state required criteria for a variance has not been met. Mr. Barrow seconded the motion. All in favor.*

7. Case V-07-24, 1196 Manor Lane, TMS# 559-01-00-026. Request for relief from the strict application of §156.303(Table) to allow a 16.3-foot encroachment into the rear setback. The ordinance requires a 30-foot rear setback for this property.

This item was withdrawn by the applicant.

8. Case V-08-24, 3846 Delinger Drive, TMS# 596-15-00-847. Request for relief from the strict application of §156.225(C) to allow the removal of a 28'' historic Live Oak tree.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Jeff Cline, builder, reviewed the request with the Board.

- Mr. Wood administered the oath to Ms. Wendy Walker, 1125 Harborgate Drive, asked that trees should be preserved within the Town as they are used by wildlife for homes.

- There being no further comments, Mr. Wood closed public comment.

- *Mr. Butner moved for approval based on the findings that it has met the criteria as the arborist report shows it is in poor condition and hazardous; conditions do not generally apply to other property due to the damage from the ditch to the tree roots, water infiltration, and the significant lean of the tree; approval would not be a detriment to the neighborhood. Mr. Branch seconded the motion. Motion passed on a 5 to 1 vote with Mr. Butner, Mr. Branch, Ms. Stevens, Ms. Hall and Mr. Wood in favor; Mr. Barrow opposed.*

9. Case V-09-24, 744 Eagle Street, TMS# 535-04-00-133. Request for relief from the strict application of §156.201(I)(3) to waive the required replanting of the Mathis Ferry Road Buffer.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Molly Mazur, owner, reviewed the request with the Board.

- Mr. Wood administered the oath to Mr. Keith Powell, 1009 Mathis Ferry Road. Mr. Powell stated that he was in favor of the fence being removed. He suggested that the amount of trees that should be replanted seems to be too onerous and unnecessary. He suggested that the reduced number of plantings Ms. Mazur is proposing should be sufficient.

- Mr. Wood administered the oath to Mr. Helen Harleston, 701 York Street. She stated that she was unclear of what is being requested.

- There being no further comments, Mr. Wood closed public comment and moved to Board questions.

- *Mr. Barrow moved for approval with the condition that the nine trees presented by the applicant to be replanted are planted in addition to one canopy tree, one understory tree, and four deciduous evergreen within 180 days, with the size of the trees to meet the mitigation size noted in the ordinance based on the findings that there are extraordinary conditions and the conditions do not apply to other properties; denial would unreasonably restrict as the applicant was not aware the area between the fence and home was a buffer; the 106 inches of mitigation is unreasonable; and it would not be a detriment as the conditioned plantings would beautify the property and neighborhood. Mr. Branch seconded the motion. All in favor.*

The Board convened for short break at 8:19 pm and reconvened at 8:26 pm.

10. Case V-10-24, 2131 Pendergrass Lane, TMS# 556-08-00-054. Request for relief from §156.226(E) to waive mitigation for an illegally removed protected Magnolia Tree.

- Ms. Swalhah reviewed staff comments with the Board.

- Ms. Stacy Phelan, owner, reviewed the request with the Board.

- *Mr. Wood moved to accept the justification for the variance as outlined in the applicant's application. Ms. Stevens seconded the motion. All in favor.*

- Mr. Wood closed public comment.

- *Mr. Branch moved for approval with the mitigation to be $1,300 or half the original mitigation assessed. Ms. Stevens seconded the motion. All in favor.*

H. Approval of Final Order

The Board signed final orders.

I. Adoption of Rules of Procedure

- *Mr. Barrow moved for approval of the rules of procedure as presented. Mr. Butner seconded the motion. All in favor.*

J. Election of Officers

- *The Board elected Mr. Wood as chair and Ms. Stevens as vice-chair by secret ballot.*

There being no further business, the meeting adjourned at 8:37 pm.

Submitted by,
L. Lynes
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